

ESCROW AGREEMENT

For Earnest Money Deposit

THIS ESCROW AGREEMENT made this _____ day of _____, 2023, by and between _____, ("Buyer"), _____ ("Seller") and Ward & Taylor, LLC, as Escrow Agent, ("Escrow Agent").

WHEREAS, the Buyer is buying and the Seller is selling a property known as _____ and the parties desire to have Escrow Agent hold the deposit of \$ _____ as stated on the Agreement of Sale signed by the Buyer and Seller; and

NOW IN CONSIDERATION OF THE MUTUAL COVENANTS AND PROMISES CONTAINED HEREIN THE PARTIES AGREE AS FOLLOWS:

1. The sum of _____ of the Buyer's funds shall be placed in a separate escrow account held by Escrow Agent, which is a non-interest bearing escrow account, until the funds are released.
2. The funds shall only be disbursed upon the satisfaction to the Escrow Agent of one of the following conditions:
 - A. Final settlement of the Property by the Buyer and Seller;
 - B. Receipt by Escrow Agent of a written Release signed by the Buyer and Seller authorizing the disbursement of the funds;
 - C. Receipt by Escrow Agent of a final and non-appealable Court Order directing the disbursement of the funds; or
 - D. Upon the filing of an interpleader action in a Court of competent jurisdiction, thereby causing the funds to be deposited with the Court.
3. If Escrow Agent elects, in its sole discretion, to file an interpleader action, Buyer and Seller authorize Escrow Agent or its assigned counsel to deduct from the funds all costs incurred by Escrow Agent or its assigned counsel and in the interpleader action, including, but not limited to, filing fees, court costs, and service of process fees, and said fees may be deducted from the funds paid to the Court at the time the interpleader action is filed and before the funds are paid to the Court.
4. The parties hereto do hereby release and hold the Escrow Agent harmless for any claims resulting from the holding and/or release of these escrows funds unless Escrow Agent is found to have engaged in willful misconduct.

5. This Escrow Agreement is not part of or included in the Agreement of Sale executed by Buyer and Seller and the execution of this Escrow Agreement shall not be necessary for the full ratification of said Agreement of Sale.
6. The deposit of the earnest money deposit check or receipt of wired funds by the Escrow Agent into the Escrow Agent's bank account does not constitute acceptance of representation of any party. Any attorney representation agreement shall be in a separate document from this Escrow Agreement.

IN WITNESS WHEREOF, the said parties have hereunto set their hands and seals the day and year aforesaid.

_____ (Buyer)

_____ (Buyer)

_____ (Seller)

_____ (Seller)

Ward & Taylor, LLC

By: _____



GENERAL ADDENDUM

ADDENDUM# _____ dated _____ to Contract of sale dated _____, between Buyer
_____, and Seller _____ for Property known as _____

Seller	Buyer
Seller	Buyer

_____	_____
Date	Date

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Page 1 of 1

CONTINGENCY WAIVER & OFFER ACKNOWLEDGEMENT

(If you do not understand the consequences of the waivers referred to in this form, seek competent legal advice prior to signing.)

Buyer(s): _____

Broker: _____

Agent: _____

Property Address: _____

We, the Buyer(s), have decided to submit an offer on the above referenced property.

In an effort to submit a more attractive offer to the Seller(s), we have made certain decisions, identified below with Buyer(s) initials, with respect to the terms of our offer. Agent has fully informed us of the potential adverse consequences that may result from these decisions. Notwithstanding the cautionary advice from Agent, we accept the risks and hereby release, indemnify, and hold harmless Broker and Agent from any liability, loss, damage, or adverse consequences that may result from our decisions regarding the issues herein.

(Check and Initial all that apply)

☐ ☐

☐ Offer price higher than the listed price.

☐ ☐

☐ Include price escalation clause in offer.

☐ ☐

☐ Waive financing contingency.

☐ ☐

☐ Waive well water contingency.

☐ ☐

☐ Waive home inspection contingency.

☐ ☐

☐ Waive contingency for lead-based paint testing.

☐ ☐

☐ Waive Wood Destroying Insect contingency.

☐ ☐

☐ Waive radon contingency.

☐ ☐

☐ Other: _____

☐ ☐

☐ Other: _____

☐ ☐

☐ Other: _____

Acknowledged and agreed to by Buyer(s):

Buyer

Buyer

Date

Date

CHANGE IN TERMS ADDENDUM TO
THE AGREEMENT OF SALE for DELAWARE RESIDENTIAL PROPERTY

THIS ADDENDUM dated _____ to the Agreement of Sale between BUYER:
_____ and
SELLER: _____
for the PROPERTY known as _____.

The BUYER and SELLER acknowledge and agree that the Agreement of Sale is hereby modified as follows (only those Sections initialed by BOTH Buyer and Seller shall be binding upon the Parties):

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 1. PURCHASE PRICE (Section 3): The Purchase Price is changed from _____ to _____.

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 2. SETTLEMENT DATE (Section 7): The Settlement Date is changed from _____ to _____.

3. FINANCING (Section 6):

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 The Type of Financing is changed from _____ to _____.

The Commitment Date is changed from _____ to _____.

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 4. SELLER CONTRIBUTION (Sec. 32 or Seller Contribution Addendum): The amount of the Seller's credit to the Buyer is changed from _____ to _____.

5. INSPECTION REPORTS (Sec. 20, 21 and/or 22):

The due date for the WDI report is changed from _____ to _____.

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 The due date for the major defects and Buyer's request for repairs as a result of the Home Inspection Contingency is changed from _____ to _____.

The due date for the septic inspection report changed from _____ to _____.

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 6. OTHER: _____

All other terms and conditions of the Agreement of Sale remain in full force and effect.

BUYER

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 DATE: _____

BUYER

--

 DATE: _____

SELLER

--

 DATE: _____

SELLER

--

 DATE: _____